

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Order Denying Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 22, 2026

Open Grid’s timely petition for panel rehearing and rehearing en banc has been circulated and considered. The petition contends that the May 29 counterfactual opinion should say more about individual functional correlations, residual administrative text, and passage-specific sealing. DOE’s ordered response maintains that the opinion already applies those limits to the corrected record.

The panel concludes that the petition identifies no material fact or legal proposition overlooked or misapprehended. The opinion confines Exemption 7(E) to supported implementation and guideline relations, requires a distinct causal basis for the four limited 7(F) functions, evaluates segregability independently, and sustains only the particularized sealing arrangement assumed by the isolated premise.

Judges Vale, Quill, and Reed therefore deny panel rehearing. No active judge has requested a poll on the request for rehearing en banc, and that request is denied as well. This order decides only the never-filed petition on the isolated docket. It does not create an event, deadline, or disposition in the actual appeal.

Effect and Mandate Calculation

The May 29 counterfactual opinion and judgment remain in effect within this branch. The denial does not broaden their reasoning, alter the twelve-record and 200-page source universe, or change the finite access restrictions attached to the controlled counterparts. It resolves the rehearing request without adding any factual premise.

The petition was filed June 12, well within the forty-five-day period otherwise available under Rule 40(d)(1) because a United States agency is a party. Without a timing order, that period would expire July 13 and Rule 41(b)'s later-of calculation would reach July 20. Having resolved the combined petition, the Court expressly shortens any remaining Rule 40 filing period to June 22. Rule 41(b) therefore measures seven days from today, and the directed mandate date is June 29, 2026.

The Clerk shall serve this order through the isolated exercise system on Tamsin Roe, Leo Marr, and Corin Pell. The timing direction shortens the remaining rehearing window but grants no stay and authorizes no access to a controlled filing. Any later request must rest on its own filing and order within this same branch.

Entered at the direction of the fictional composite panel on June 22, 2026. The order contains no operational value, identity, contact path, or real cybersecurity information.